Our ref: 4-HOIWASG

Tom & Co Legal Pty Ltd
Att: Tom Monks, Principal Director
45 Delawney Street
Balcatta WA 6021

By email: info@tomandcolegal.com.au

Dear Mr Monks,

Thank you for your letter dated 31 October 2022, advising that you act for Forward Focused Group Pty Ltd and Ms Vida Reid.

I note that you are seeking additional information and additional time to provide submissions on the proposed decisions of the NDIS Quality and Safeguards Commission (the Commission)~~'s proposed decisions~~.

The Commission ~~has~~ advised through the notices issued on 19 October 2022 that it intends to revoke the registration of the registered NDIS provider and make banning order~~/~~s. The notice of intention is a document that initiates the process of, possibly, making a decision. Regarding supplying additional information~~;~~, the Commission is satisfied ~~, at this time,~~ that you ~~already~~ currently hold sufficient information to respond to the notices.

~~In relation to the~~The suspension of registration of Forward Focused Group Pty Ltd (4-4GHG-1073) ~~this~~ commenced on 19 October 2022 (the date of the n~~N~~otice). At this time, the suspension is in effect until~~-~~ 19 November 2022. The Commission has received your client's application for internal review of the decision to suspend Forward Focused Group Pty Ltd, and they will be contacted in the near future about providing submissions for the internal review. ~~As the suspension is currently in effect, the Commission does not require your Client to make submissions on the suspension of their registration.~~

~~Secondly, the~~Your letter also seeks an "~~e~~extension of time" to provide submissions on revocation of registration and banning orders. I have considered your request ~~for additional time.~~and I have decided to grant your ~~C~~client/s an additional fourteen (14) days from the original due date of 5:00pm (AWST) on 16 November 2022. Submissions made by your c~~C~~lient on the proposed revocation of registration and banning orders are now due no later than **5:00pm (AWST) on 30 November 2022**.

Importantly, the decisions on revocation of registration and banning orders are not yet finalised. The Commission looks forward to receiving submissions to further inform its ~~decision making~~decision-making.

~~In relation to the suspension of registration of Forward Focused Group Pty Ltd (4-4GHG-1073) this commenced on 19 October 2022 (the date of the Notice). At this time the suspension is in effect until 19 November 2022. As the suspension is currently in effect, the Commission does not require your Client to make submissions on the suspension of their registration.~~

If you have questions about this letter, please email WACompliance@ndiscommission.gov.au.

Commented [SL1]: Noting the previous advice received from the AGS, and as discussed previously, we recommend providing the requested information. This approach limits the legal risk of procedural fairness being relied upon as grounds to challenge the decision. Please see our covering email for further explanation.

Should you decide to accept these risks, we recommend outlining to Philip, alongside this letter, the reasons you consider he may be satisfied that FFG/Ms Reid have sufficient information to make submissions.

Commented [SL2]: We note that LSB did not review the suspension aspect of the original briefing package.

Given that FFG have since applied for internal review of the decision to suspend, should you plan to impose a further suspension, we are happy to provide advice on how to address any procedural fairness issues.

Yours sincerely

Philip Halton
Branch Head Operations – North Central West Region
XX November 2022